

City of Olive Branch, Mississippi

Request for Information

Name: Matt Reardon

Date: 11/19/2020

Address: 117 CR 701 Oxford MS 38655

Time: 11:00 AM

Telephone No: 662-812-1613

Type of Information Requested (Be Specific)

All Court Records regarding Phyllis Crowder
false reporting of the crime of Rape Against
Me, Matthew Reardon. I would like initial filing
and any and all communication that took place
between her counsel and Judge Shumate

Number of Copies Requested: _____

Signature: [Signature]

For Official Use Only

Date of Response: _____

Estimated Cost:

Administrative Time: _____ @ _____ = _____

Reproduction cost: _____ @ _____ = _____

Total Estimated Cost: _____

Actual Cost:

Administrative Time: _____ @ _____ = _____

Reproduction Cost: _____ @ _____ = _____

Total Actual Cost: _____

Amount Due or Reimbursement: _____

Request Denied: _____

Paid By Receipt No. _____ BY: _____

DEFENDANT PAYMENT LOG SHEET

JUDY SKINNER

COURT DATE: 2/11/2020 Tuesday

JUDGE: LESLIE SHUMAKE

TIME: 9:00 AM

NAME: PHYLLIS MARIE CROWDER

DOCKET #: 2000000454

PAYMENT DUE: \$ _____

[illegible][illegible]

						DATE	INITIALS
	DATE	INITIALS			Final Disposition Date:		
1 st Letter:					Verified Disposition & JUDGEMENT:		
License Suspended:					Court Order signed?:		
Warrant Issued:					Rap Sheet Completed		
					PAID IN FULL		

**ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT**

**CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI**

DOCKET NO. 2000000454

**CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)
VS.**

Phyllis Crowder, **DEFENDANT**

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 27 day of OCT., 2020, at 9 A.M./P.M., for the purpose of 1) _____ entry of plea & payment of \$ _____, 2) _____ trial 3) _____ retaining an attorney, 4) X report back.

Ordered and adjudged the 22 day of Sept., 20 20.

In Person

Acknowledged:

C. Johnson, DCC
JUDGE/CLERK

By _____
**CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)**

May pay before court _____

[Signature]
DEFENDANT

PHONE #

[Signature]
ATTORNEY FOR DEFENDANT

SUBPOENA

11/10/2
CLERK VERIFIED/DATE

WARRANT
STATE OF MISSISSIPPI

Olive Branch Municipal Court
Warrant No: 31808

To Any Lawful Officer:

This is to command you to forthwith to take the body of:

**Phyllis Marie
Crowder**

Race / Sex: W / F DOB:

SSN: OLN:

and have said person before the undersigned, a Olive Branch Municipal Court Judge of said city to answer to the State of Mississippi on a charge of:

FALSE REPORTING OF CRIME

This in violation of section 97-35-47

\$ 2,500.00
Bond Type: Cash/Surety

Witness my hand this the 13 Day of Feb., 2019



Olive Branch Municipal Court Judge

Certificate of Service

Warrant served this 25 Day of January, 2020 Time 1950
Name of Officer [Signature] 3312

After diligent search and inquiry the within named individual could not be found.

This the _____ Day of _____, _____ Time _____
Signature: _____

You are to appear in the Olive Branch Municipal Court Court on this _____ Day of _____, _____ Time _____

General Affidavit
STATE OF MISSISSIPPI

Olive Branch Municipal Court

Incident No: 2019004743

Personally appeared before me, Kim Wade DCC of the Olive Branch Municipal Court, Ashley I Holladay who makes oath that on or about the 29 day of November, 2018 within the corporate limits of said city and in the jurisdiction of the Court.

Phyllis Crowder did WILLFULLY, UNLAWFULLY AND KNOWINGLY REPORT A CRIME, (1) OR ANY ELEMENT OF A CRIME TO A LAW ENFORCEMENT OFFICER, BY ANY MEANS, KNOWING THAT SUCH REPORT WAS FALSE. To Wit: On 11/29/2018 at approximately 1550, officers were dispatched to 4250 Bethel Rd (Olive Branch Methodist Hospital) in reference to a physical assault. Upon arrival officers spoke with Phyllis Crowder (MS DL:) who appeared to be distraught. Crowder reported (R&I 2018038694) that on 11/25/2018 between the approximate hours of 0100-0345, her ex-boyfriend and father of her child, Matthew Reardon sexually assaulted her at his residence of 7677 Alexander Crossing Cir. Crowder stated in her report that Reardon grabbed her by her clothing while in the kitchen in an attempt to have sex with her, but she consistently told him to stop. Crowder stated Reardon then forcibly grabbed her by the hair, drug her to his bedroom, pushed her onto his bed, and inserted both his penis and a sex toy into her vagina without her consent. On 11/30/2018 at approximately 1300, I, Det. Holladay, met with Crowder and her husband at OBPD. Crowder came to my office, and Crowder gave me details of the incident. During our conversation, Crowder stated the sexual intercourse was not consensual. On 12/13/2018 at 1224, I read Miranda and interviewed Reardon at OBPD. Reardon stated he and Crowder had text and planned all weekend for her to come to his residence for them to have sexual intercourse. Reardon stated Crowder did come to his residence, and they had consensual sex. Reardon then gave me printed out screenshots of text conversations between him and Crowder for the weekend in question. Reardon stated he would bring the phone to OBPD on 12/17/2018 for us to download its contents. On 12/18/2018 at 1216, Reardon brought his cell phone to OBPD, and I took possession of it. I obtained a search warrant for Reardon's cell phone, and the cell phone was later downloaded. The downloaded information matched the printed texts Reardon had previously provided and supported Reardon's claims that this was a consensual sexual encounter. Based on the evidence, I found the allegation of rape to be a false report intentionally filed by Crowder. This incident did occur within the city limits of Olive Branch, Desoto County, Mississippi.

TO WIT: FALSE REPORTING OF CRIME

This in the Olive Branch Municipal Court in the State of Mississippi. Against the peace and dignity of the State of Mississippi and contrary to the Ordinances of said city in such cases made and provided, and the good order and peace thereof.

Det. A. Holladay / 3395
Affiant

Sworn and subscribed before me this 13 Day of February 2019

Kim Wade DCC
Signed

WARRANT NUMBER: 31808

AFFIDAVIT PREPARED BY ID #: A. Holladay #3395

Name	Defendant	Address
<u>Phyllis Marie Crowder</u>		
Race / Sex: <u>W / F</u>	DOB:	
SSN:		
OLN:		

FEE BILL, CRIMINAL CASES, COUNTY COURT

State of Mississippi
DeSoto County

STATE OF MS V PHYLLIS CROWDER

Case # S2020-0024CD Acct # Paid By CASH Rct# 137962

APPEALS

1319.25

=====

Total	\$	1319.25
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Payment received from PHYLLIS CROWDER

Transaction 303924 Received 11/19/2020 at 12: 1 Drawer 1 I.D. RPW

Current Balance Due \$0.00 Receipt Amount \$ 1319.25

By  D.C. Dale K. Thompson, Circuit Clerk

Case # S2020-0024CD Acct # Paid By CASH Rct# 137962

IN THE COUNTY COURT OF DESOTO COUNTY, MISSISSIPPI

CRIMINAL DIVISION

STATE OF MISSISSIPPI
CITY OF OLIVE BRANCH

VS

CAUSE NUMBER S2020-0024(CD)

PHYLLIS CROWDER,
DEFENDANT

ORDER OF DISMISSAL

This matter is before the Court on the *de novo* appeal filed in this matter on November 19, 2020. Having reviewed the case file and considered the relevant case law and court rules, the Court, acting *sua sponte*, finds as follows:

On November 19, 2020, Defendant filed her *de novo* appeal of a conviction rendered in the Municipal Court of Olive Branch, Mississippi on September 22, 2020 for 'False Reporting of a Crime'. Attached to Defendant's *Notice of Appeal* is correspondence with the lower court's clerk indicating that Defendant did not actually receive a copy of the judgment until it was transmitted by email on October 6, 2020.

Mississippi Rule of Criminal Procedure 29.1(a) states in relevant part:

Any person adjudged guilty of a criminal offense by a justice or municipal court may appeal to county court or, if there is no county court, to circuit court, by filing simultaneously a written notice of appeal, and both a cost bond and an appearance bond (or cash deposit), as provided in Rules 29.3(a) and 29.4(a), with the clerk of the circuit court having jurisdiction within thirty (30) days of such judgment.

Even giving the Defendant the benefit of the doubt that the lower court may have rendered judgment under advisement at a date later than the trial and judgment date of September 22, 2020, the time period for filing the appeal lapsed on November 5, 2020. That was the thirtieth (30th) day after the judgment. Defendant's appeal is two weeks late.

FILED
DESO TO COUNTY, MS

NOV 23 2020

W. H. Thompson
CIRCUIT COURT CLERK

pg 115334

M.R.Cr.P. 29.1(c) provides a mechanism for curing the content of a defective notice of appeal. However, Defendant's oversight is a defect that cannot be cured. The failure to timely file the *Notice of Appeal* pursuant to M.R.Cr.P. 29.1(a) leaves this Court without jurisdiction to entertain the appeal.

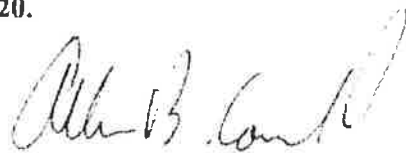
The comments to the above-referenced rule, which mirrors its predecessor, UCCCR 12.02, are also instructive:

Section (a) requires the notice of appeal to be filed with the clerk of the circuit court within thirty (30) days of entry of the judgment appealed from. *See Murray v. State*, 870 So.2d 1182, 1184 (Miss. 2004) (holding the thirty (30) day deadline in procedural rule governs over conflicting statute). Under section (a), and unlike *Rule 4(e) of the Mississippi Rules of Appellate Procedure*, pending post-trial motions do not extend the time for taking an appeal; nor is the time for filing a notice of appeal extended if the lower court judge stays execution of the judgment. Section (c) requires that the lower court be promptly notified of any dismissal, so that execution of its judgment may proceed.

This Court agrees with Justice Graves who stated in the *Murray* case: "Although this Court has no choice but to hold that Murray's filing is untimely, it is troubling that such an unfortunate result must obtain." *Id.* At 1184

Accordingly, the appeal filed herein should be, and same is hereby, dismissed and the case is returned to the docket of the Municipal Court of Olive Branch Mississippi, for execution of the judgment rendered in this matter.

SO ORDERED, this the 23rd day of November, 2020.



COUNTY COURT JUDGE



Municipal Court

**OLIVE BRANCH MUNICIPAL COURT
OLIVE BRANCH, MISSISSIPPI**

PHYLLIS MARIE CROWDER

VS.

DOCKET # 2000000454

CITY OF OLIVE BRANCH

RYAN EVANS, PROSECUTOR

CRIMINAL COST BILL FOR APPEAL

1. **PURSUANT TO RULE 12.02 OF THE MISSISSIPPI UNIFORM
CIRCUIT AND COUNTY COURT RULES BOND IS POSTED
IN THE ABOVE STYLED AND NUMBERED CAUSE OF
ACTION AS FOLLOWS:**

FINE	\$ <u>1,000.00</u>
ASSESSMENTS	\$ <u>209.25</u>
COUNTY COURT COST	\$ <u>110.00</u>
LESS FINE AND COST PAID	\$ <u>-0-</u>
TOTAL	\$ <u>1,319.25</u>

2. **APPEAL BOND APPROVED IN THE AMOUNT OF \$ 1,319.25**

3. **APPEARANCE BOND** **\$ 1,000.00**

ORDERED AND ADJUDGED, THIS THE 26TH DAY OF OCTOBER, 2020.

OLIVE BRANCH JUDGE/CLERK



IN THE COUNTY COURT OF DESOTO COUNTY, MISSISSIPPI
ON APPEAL FROM OLIVE BRANCH MUNICIPAL COURT

STATE OF MISSISSIPPI

VS.

Cause No. 52020-0024CD

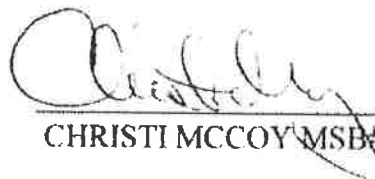
PHYLLIS CROWDER

NOTICE OF PAYMENT OF APPEAL COSTS

Notice is hereby given that the appellant, Phyllis Crowder, has this day paid all costs of the appeal.

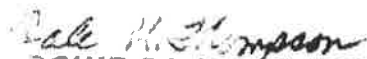
1. Order entered October 6, 2020 (see attached).
2. Notice of Appeal filed (see attached)
3. Bill of cost provided October 26, 2020 (see attached)
4. Costs paid October 29, 2020 (see attached)

This the 29th day of October 2020


CHRISTI MCCOY MSB#9986

Christi McCoy
The Earlene Gardner Victims Assistance Project
Post Office Box 928
Oxford, Mississippi 38655
cmccoy@nmrls.com
662-816-7251

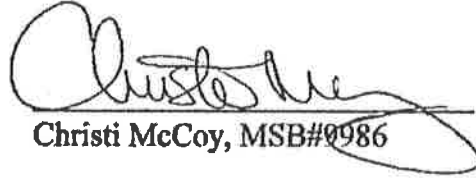
FILED
DESO TO COUNTY, MS


DALE H. THOMPSON
CIRCUIT COURT CLERK

CERTIFICATE OF SERVICE

I do hereby certify that I have this day mailed, via U.S. Mail, the preceding Notice.

This the 29th day of October 2020.


Christi McCoy, MSB#0986



Municipal Court

**OLIVE BRANCH MUNICIPAL COURT
OLIVE BRANCH, MISSISSIPPI**

PHYLLIS MARIE CROWDER

VS.

DOCKET # 2000000454

CITY OF OLIVE BRANCH

RYAN EVANS, PROSECUTOR

CRIMINAL COST BILL FOR APPEAL

1. **PURSUANT TO RULE 12.02 OF THE MISSISSIPPI UNIFORM
CIRCUIT AND COUNTY COURT RULES BOND IS POSTED
IN THE ABOVE STYLED AND NUMBERED CAUSE OF
ACTION AS FOLLOWS:**

FINE	\$ <u>1,000.00</u>
ASSESSMENTS	\$ <u>209.25</u>
COUNTY COURT COST	\$ <u>110.00</u>
LESS FINE AND COST PAID	\$ <u>-0-</u>
TOTAL	\$ <u>1,319.25</u>

2. **APPEAL BOND APPROVED IN THE AMOUNT OF \$ 1,319.25**

3. **APPEARANCE BOND** **\$ 1,000.00**

ORDERED AND ADJUDGED, THIS THE 26TH DAY OF OCTOBER, 2020.

OLIVE BRANCH JUDGE/CLERK



IN THE MUNICIPAL COURT OF OLIVE BRANCH, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

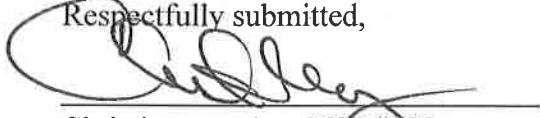
Docket No. 2000000454

PHYLLIS CROWDER

NOTICE OF APPEAL

COMES NOW, PHYLLIS CROWDER, defendant herein, and files this Notice of Appeal from the order of September 22, 2020. (Received 10/6/2020).

Respectfully submitted,


Christi R. McCoy, MSB#9986

Christi R. McCoy
P.O. Box 928
Oxford, Mississippi 38655
662-234-8731, ext. 2101
cmccoy@nmrls.com

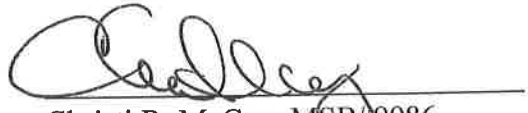
Attorney for Phyllis Crowder

CERTIFICATE OF SERVICE

I, Christi R. McCoy, attorney for Phyllis Crowder, do hereby certify that I have this day mailed, by United States Mail, postage prepaid, a true and correct copy of the above and foregoing to:

Ryan Evans
Prosecutor/Olive Branch Municipal Court

This the 13th day of October 2020.


Christi R. McCoy, MSB#9986

JOSHUA B. WILLIAMS
MS LICENSE #9908476
D/B/A

PHONE 662-429-2310

№ 11319 A

Appearance Bond
For Appeal

**AL WILLIAMS
BAIL BOND COMPANY**

3402 Industrial Drive West
Hernando, MS 38632

Appearance Bond For Appeal from Olive Branch City Court to.

County City of Hernando

County of Desoto State of Mississippi

KNOW ALL MEN BY THESE PRESENTS THAT WHEREAS THE UNDERSIGNED

Principal Phyllis Crowder has been charged with

The Offense of False Reporting of a
Crime

Now therefore we undertake jointly and severally that said principal shall appear as required by the court from day to day and term to term until tried, enters a guilty plea, or the case is remanded to the files in the court jurisdiction in the matter. This is not a guarantee of fine or any other sentence. This bond cannot be used to bind over to any court other than the one stated above for pre-sentencing release after a determination of guilt.

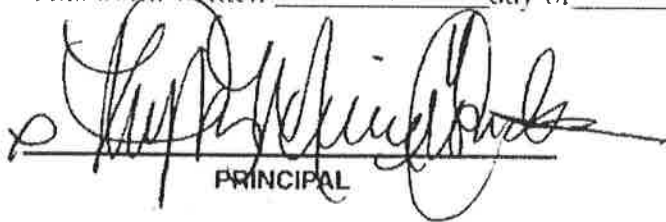
If principal fails to appear we will pay the court listed above

the sum of One Thousand dollars (\$ 1,000).

Principal should appear in court

To Be Notified
_____ m _____ day of _____, 20____

This bond written 19 day of NOV, 2020


PRINCIPAL

Ashley McKinnie
#10108088
662-429-2310

ACCEPTED BY


JOSHUA B. WILLIAMS

IN THE MUNICIPAL COURT
OF THE CITY OF OLIVE BRANCH, MISSISSIPPI

CITY OF OLIVE BRANCH

VS

DOCKET NO. 2000000454

PHYLLIS MARIE CROWDER

DEFENDANT

ORDER GRANTING CONTINUANCE

THIS CAUSE came on this date upon the Motion for Continuance filed by Counsel for the Defendant, and the Court, having maturely considered the same, doth find as follow, to-wit:

1.

That although the Court notes that this case has deemed to be a "stale case" with no further continuances granted, Counsel for the Defendant filed a "Motion To Continue" as co-counsel has been ordered quarantined in the State of New York.

2.

That further, due to the Covid 19 virus, cases have necessarily been continued for longer periods of time than is typical. That a continuance in this case be and is hereby granted to September 22 2020, at 9:00 ~~A.M.~~ P.M., for trial.

3.

That any further continuances shall only be granted for good cause shown.

SO ORDERED AND ADJUDGED this 31st day of July, 2020.


MUNICIPAL COURT JUDGE

Subp.
A. Holladay
Victim

IN THE MUNICIPAL COURT OF OLIVE BRANCH, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

Cause No.

PHYLISS CROWDER

MOTION TO CONTINUE

COMES NOW, Phyliss Crowder, defendant herein, by and through counsel and moves this Honorable Court to continue the matter set August 4, 2020, stating as follows:

1. This criminal matter is set for hearing August 4, 2020.
2. Defendant Crowder has retained new counsel, Mona Pittman, who is also the defendant's attorney in a related chancery matter.
3. Attorney Pittman will be quarantined in New York City until the latter part of the month and cannot be present for the trial on August 4, 2020.
4. Defendant prays this Honorable Court will continue this matter until Attorney Pittman can be present.
5. The prosecutor has indicated he has no objection to a continuance of this matter for the listed reason.
6. This motion is not filed for the purpose of delay but so that justice may be served.

This the 2nd day of August 2020.

Respectfully submitted,

/s/Christi R. McCoy

CHRISTI R. MCCOY, MSB#9986

Christi R. McCoy, MSB#9986
The Earlene Gardner Victims Assistance Project
Post Office Box 928
Oxford, Mississippi 38655
Telephone: 662-234-8731, Ext. 2101
Facsimile: 662-234-2965
Email: cmccoy@nmrls.com

CITY OF OLIVE BRANCH
STATE OF MISSISSIPPI
COUNTY OF DESOTO

SUBPOENA

TO ANY LAWFUL OFFICER GREETING:

SUMMON:

SGT. ASHLEY HOLLADAY
10470 HWY 178
OLIVE BRANCH, MS 38654

DOCKET NO: 2000000454

To PERSONALLY appear before the Judge in the Municipal Court of OLIVE BRANCH, MISSISSIPPI at 9:00 AM on the 22nd day of September, 2020, to testify in a matter wherein PHYLLIS MARIE CROWDER is charged with a violation of the ordinance in the City of OLIVE BRANCH, and PHYLLIS MARIE CROWDER shall in no way omit, under penalties to prescribed by law.

OF THIS WRIT MAKE LEGAL AND DUE RETURN

Given under my hand, this the 17th day of August, 2020.

CARLA JOHNSON, D.C.C.
City Court Clerk



=====

PHYLLIS MARIE CROWDER

=====

SGT. ASHLEY HOLLADAY
10470 HWY 178
OLIVE BRANCH, MS 38654
(662) 892-9400

ISSUED: 8/17/2020

CAME TO HAND A Hue
EXECUTED ON THE DAY WITHIN NAMED PARTY
THIS 18 DAY OF August, 2020.
A. D. S. 309

Officer

CITY OF OLIVE BRANCH
STATE OF MISSISSIPPI
COUNTY OF DESOTO

SUBPOENA

TO ANY LAWFUL OFFICER GREETING:

SUMMON:

DOCKET NO: 2000000454

MATTHEW OLIVER REARDON
503 CR 371
WATER VALLEY, MS 38965

To PERSONALLY appear before the Judge in the Municipal Court of OLIVE BRANCH, MISSISSIPPI at 9:00 AM on the 22nd day of September, 2020, to testify in a matter wherein PHYLLIS MARIE CROWDER is charged with a violation of the ordinance in the City of OLIVE BRANCH, and PHYLLIS MARIE CROWDER shall in no way omit, under penalties to prescribed by law.

**** FAILURE TO APPEAR ON THIS SUBPOENA COULD RESULT IN A WARRANT BEING ISSUED FOR YOUR ARREST. ****

OF THIS WRIT MAKE LEGAL AND DUE RETURN

Given under my hand, this the 17th day of August, 2020.



CARLA JOHNSON, D.C.C.
City Court Clerk

=====

PHYLLIS MARIE CROWDER

=====

MATTHEW OLIVER REARDON
503 CR 371
WATER VALLEY, MS 38965
(662) 892-0132
812-1613
ISSUED: 8/17/2020

Mailed 8-17-20 (8)

CAME TO HAND _____
EXECUTED ON THE DAY WITHIN NAMED PARTY
THIS ____ DAY OF _____, 20____.

Officer

**ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT**

CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI

DOCKET NO. 2000 OBC 4521

CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)

VS.

Phyllis Marie Crowder, DEFENDANT

August 4th

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 21st day of July, 20 20, at 9:00 A.M./P.M., for the purpose of 1) N entry of plea & payment of \$ _____, 2) _____ trial 3) _____ retaining an attorney, 4) _____ report back.

Ordered and adjudged the 23 day of JUNE, 20 20.

IN PERSON

Acknowledged:

By

[Signature]
CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)

[Signature]
JUDGE/CLERK

May pay before court _____

SUBPOENA

D. N. A

DEFENDANT

Victim

PHONE # _____

D. N. A.

ATTORNEY FOR DEFENDANT

6-29-20
CLERK VERIFIED/DATE

6/29 - letter emailed cont to
Atty - set 8/4 @

CITY OF OLIVE BRANCH
STATE OF MISSISSIPPI
COUNTY OF DESOTO

SUBPOENA

TO ANY LAWFUL OFFICER GREETING:

SUMMON:

MATTHEW OLIVER REARDON
503 CR 371
WATER VALLEY, MS 38965

DOCKET NO: 2000000454

To personally appear before the Judge in the Municipal Court of OLIVE BRANCH, MISSISSIPPI at 9:00 AM on the 4th day of August, 2020, to testify in a matter wherein PHYLLIS MARIE CROWDER is charged with a violation of the ordinance in the City of OLIVE BRANCH, and PHYLLIS MARIE CROWDER shall in no way omit, under penalties to prescribed by law.

**** FAILURE TO APPEAR ON THIS SUBPOENA COULD RESULT IN A WARRANT BEING ISSUED FOR YOUR ARREST.****

OF THIS WRIT MAKE LEGAL AND DUE RETURN

Given under my hand, this the 16th day of July, 2020.

CARLA JOHNSON, D.C.C.
City Court Clerk



=====

PHYLLIS MARIE CROWDER

=====

MATTHEW OLIVER REARDON
503 CR 371
WATER VALLEY, MS 38965
(662) 832-5049

Mailed 7-16-20
(CS)

ISSUED: 7/16/2020

CAME TO HAND _____
EXECUTED ON THE DAY WITHIN NAMED PARTY
THIS ____ DAY OF _____, 20 ____.

Officer



Olive Branch Police Department

Incident Report

10470 HWY 178 Olive Branch, MS 38654

Phone: (662) 892 - 9400 Fax: (662) 892 - 9404

Chief Of Police Don
Gammage

(US/Central)

ORI MS0170200	County DESOTO COUNTY	Venue OLIVE BRANCH	Report # 2019004743
Report Date / Time 02/13/2019 09:05 Hrs	Occurrence Date / Time 02/13/2019 09:05 Hrs	File Class FRC	

Nature of Incident

False Report Of Crime

Supplements

Approved Report (2)

Summary

False Report of Rape

Incident Location

Address 4250 Bethel Road	City Olive Branch	State Mississippi	ZIP 38654	Country United States of America
County: DESOTO COUNTY	Township of Occurrence	Clery Location		
Intersection 6093 Morgan Drive (0 null)				
Latitude 34.922639	Longitude -89.792149	Beat	Sub-Beat	

Incident Offenses

Supp # 0	Offense FRC - False Reporting Of Crime	Status Open/Pending	Status Date 02/13/2019 09:05 Hrs
Attempted / Completed Completed	Weapons Used		
Remarks: False Report of Rape			

Officers Involved

Role Reporting	Name Detective A. Holladay (#3395)	Agency Olive Branch Police Department	Supp # 0
-------------------	---------------------------------------	--	-------------

Incident People

Roles Suspect / Offender	Supp # 0		
Name CROWDER, PHYLLIS MARIE (Primary Name)	Title	Date of Birth	
Race White	Sex F	Age at Occurrence 29 Years Old	DL #

Cellular (Date of Info: 11/29/2018)

- Cellular (Date of Info: 11/29/2018)

Address: (Date of Info: 11/29/2018)			
Height 506	Weight 190	Hair Brown Straight	Hair Length Long
Eye Color Brown	Build Medium	Facial Hair None	Skin Light
			Date of Info 11/29/2018

Roles Victim	Supp # 0		
Name STATE OF MISSISSIPPI, (Primary Name)	Title	Date of Birth	

Race	Sex	Age at Occurrence	DL #
Unknown	U	Unknown	

Roles	Supp #	
Complainant	0	
Name	Title	Date of Birth
HOLLADAY, ASHLEY I (Primary Name)		

Race	Sex	Age at Occurrence	DL #	
White	F	37 Years Old	3395	
Residence (Date of Info: 03/10/2017)				
662-892-9400 - Residence (Date of Info: 03/10/2017)				
Address:				
8802 Old Craft Road OLIVE BRANCH, MS 38654 (Date of Info: 03/27/2017)				
Height	Weight	Hair	Hair Length	Skin
Eye Color	Build	Facial Hair	Date of Info	
Hazel			08/05/2017	

Roles	Supp #	
Interviewed	0	
Name	Title	Date of Birth
REARDON, MATTHEW OLIVER (Primary Name)		03/24/1987

Race	Sex	Age at Occurrence	DL #	
White	M	31 Years Old	801186335 (Mississippi)	
Cellular (Date of Info: 11/11/2018)				
662-832-5049 - Cellular (Date of Info: 11/11/2018)				
Address:				
7677 ALEXANDERS CROSSING Drive OLIVE BRANCH, MS 38654 (Date of Info: 02/13/2019)				
Height	Weight	Hair	Hair Length	Skin
509	140	Brown		
Eye Color	Build	Facial Hair	Date of Info	
	Slight	Beard	11/11/2018	

Author:	Date Created:	Supp #:
Patrol Sgt. A. Holladay #3395	02/13/2019 0922 Hrs	0

On 11/29/2018 at approximately 1550, officers were dispatched to 4250 Bethel Rd (Olive Branch Methodist Hospital) in reference to a physical assault. Upon arrival officers spoke with Phyllis Crowder (MS DL:) who appeared to be distraught. Crowder reported (R&I 2018038694) that on 11/25/2018 between the approximate hours of 0100-0345, her ex-boyfriend and father of her child, Matthew Reardon sexually assaulted her at his residence of 7677 Alexander Crossing Cir. Crowder stated in her report that Reardon grabbed her by her clothing while in the kitchen in an attempt to have sex with her, but she consistently told him to stop. Crowder stated Reardon then forcibly grabbed her by the hair, drug her to his bedroom, pushed her onto his bed, and inserted both his penis and a sex toy into her vagina without her consent. Crowder stated when Reardon fell asleep on the couch, she took photographs of the inside of the residence, took her daughter, left the residence, and went to her residence in Oxford, MS.

On 11/30/2018 at 1300, I, Det. Holladay, met with Crowder and her husband at OBPD. Crowder came to my office and we spoke regarding the incident. Crowder stated during the incident, she voluntarily removed her own clothing, and during the sexual assault she kept her hands above her head due to Reardon instructing her not to touch herself or him. Crowder stated during the incident, their four year old daughter came downstairs, and Crowder asked Reardon to close the door so their daughter would not see. Crowder stated Reardon got up and closed the bedroom door. Crowder admitted to performing oral sex on Reardon, "to get him back right." Crowder stated what she meant by that was she gave him oral sex until he was fully erect again. Crowder stated Reardon penetrated her vaginally again with his penis and a vibrator, and Reardon also penetrated her anally with a vibrator. Crowder stated this continued until Reardon ejaculated inside of her vagina. Crowder stated during the incident, Reardon asked repeatedly to record it, but Crowder stated she told him no. Crowder stated Reardon did not record the incident. Crowder stated after the incident she left Reardon's residence by herself, went to McDonald's, got something to eat, and returned to Reardon's residence. Crowder stated while she was in her vehicle, she had a phone conversation with her husband, but she did not tell him about the sexual assault that had just occurred. Crowder stated when she got back to Reardon's residence, she and Reardon sat in the living room while she ate. Crowder stated when Reardon fell asleep, she gathered her daughter's belongings, took pictures of the residence's living conditions, got her daughter, and they left Reardon's residence. Crowder stated the sexual interaction between she and Reardon was not consensual.

On 12/13/2018 at 1224, I read Miranda and Interviewed Reardon at OBPD. Reardon stated he and Crowder had text and planned all weekend for her to come to his residence for them to have sexual intercourse. Reardon stated Crowder did come to his residence, and they had consensual sex. Reardon then gave me printed out screenshots of text conversations between he and Crowder for the weekend in question. Reardon stated he would bring the phone to OBPD on 12/17/2018 for us to download it's contents.

On 12/18/2018 at 1216, Reardon brought his cell phone to OBPD, and I took possession of it. I obtained a search warrant for Reardon's cell phone. Reardon's cell phone was later downloaded. The downloaded information matched the printed texts Reardon had previously provided and supported Reardon's claims that this was a consensual sexual encounter. Based on the evidence, I found the allegation of rape to be a false report intentionally filed by Crowder.

Det. A. Holladay/3395

Signed: Patrol Sgt. A. Holladay #3395

Reviewed: Maj B. Cox #3167

Supplement #1 Narrative

Author:

Date Created:

Supp #:

Patrol Officer S. George #3312 01/25/2020 2131 Hrs 1

On January 25, 2020 at approximately 7:50 pm I met Lafayette County PD on HWY 7 near the Marshall County line to take custody of Phyllis Crowder for warrant # 31808 for False Reporting of Crime. Crowder was transported to OBPD, processed and later bonded out to No Limit Bail Bonds and given a court date of February 11, 2020 at 9:00 am. Crowder's bond was \$2,500.00.

Officer George 3312

Signed: Patrol Officer S. George #3312

Reviewed: Patrol Sgt. A. White #3398



Olive Branch Police Department
Field Arrest Report
 10470 HWY 178 Olive Branch, MS 38654
 Phone: (662) 892 - 9400 Fax: (662) 892 - 9404

CT 013887 200000454

Arrest Number 20205276		Arrest Date 01/25/2020 1950 Hrs (US/Central)		PBT	Fingerprint Live Scan
Location: 10470 Hwy 178 Olive Branch, Ms 38654					
Geographic Location			County of Occurrence		
Arrest Comment					
Bond Company No limit Bail Bonds			Total Bond 2500.0		
Citation#					
Court Olive Branch Municipal Court		Court Date 02/11/2020 0900			
Arrestee					
Name Phyllis Marie Crowder		DOB	Age 30		 01/25/2020
Sex Female	Race White	Ethnicity Not Hispanic or Latino	DL # (State)		
Physical Description Ht: 5' 06", Wt: 190, Build: Large, Eyes: Brown, Hair: Brown, Hair Length: Long, Skin: Fair, Glasses: No					
Res. Phone Not Specified	Cell Phone	Email			
Address (Residence)					
Emergency Contact					
School / Employer UNEMPLOYED					
Place of Birth Oxford Mississippi United States of America			Citizenship United States of America		
Caution Codes					
Aliases					
Disposition					
Disposition Released	County	Placement		Placement Date	Release Date
Comment: Bonded out					
Relations					
Name	Race White	Sex Male	DOB	Relation Spouse	NOK N E C Y Dependent N Date of Info 01/25/2020
Address				PHONE	
Identification					
ID Number	ID Type OLN				
Officers					
Name George, Shannon - Patrol Officer #3312			Agency Olive Branch Police Department		Role Arresting / Citing

AW

Charges

Statute 97-35-47	CSAU Completed	Charge FALSE REPORTING OF CRIME		
Charge Category			Charge Class	
Offense Count 1	Offense Date 11/29/2018	Domestic Related No	Bond Type Cash/Surety	Bond Amount \$ 2,500.00

Total Charge Bond Amount:
\$2,500.00

Warrants

Warrant Number 2019004743 (Incident #)	County	Bond Type Cash/Surety	Bond Amount \$ 2,500.00
---	--------	--------------------------	----------------------------

Comment

Charge Description

FRC - 97-35-47 FALSE REPORTING OF CRIME

Details

Status: Served

Extradition Verification

Total Warrant Bond Amount:

\$2,500.00

Incidents

Report # 2019004743	Supp # 0	Agency Olive Branch Police Department	Reporting Officer(s) Holladay, Ashley
------------------------	-------------	--	--

Calls For Service

Dispatch # 2019004743	Call Date 02/13/2019 0905	Call Type FRAUD	Call Type 4250 BETHEL RD, OLIVE BRANCH, MS, DESOTO COUNTY
--------------------------	------------------------------	--------------------	--

ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT

CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI

DOCKET NO. 2000000 454

CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)
VS.

Phyllis Marie Crowder, DEFENDANT

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 23rd day of June, 2020, at 10:00 A.M./P.M., for the purpose of 1) X entry of plea & payment of \$ _____, 2) _____ trial

3) _____ retaining an attorney, 4) _____ report back.

Ordered and adjudged the 19th day of May, 2020

G. Johnson, DCC
JUDGE/CLERK

Acknowledged:

By [Signature]
CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)

May pay before court _____

DEFENDANT

PHONE #

Emailed Atty 5-19-20
ATTORNEY FOR DEFENDANT

SUBPOENA

Need copies of text
messages from police

Need recording from
victim

zoom

6/10 Subpd Matthew Bearden,
As per Ashley's Conv. w/ Ryan
6-10-20

CLERK VERIFIED/DATE

CITY OF OLIVE BRANCH
STATE OF MISSISSIPPI
COUNTY OF DESOTO

SUBPOENA

TO ANY LAWFUL OFFICER GREETING:

SUMMON:

MATTHEW OLIVER REARDON
503 CR 371
WATER VALLEY, MS 38965

DOCKET NO: 2000000454

To appear, via Zoom, before the Judge in the Municipal Court of OLIVE BRANCH, MISSISSIPPI at 10:00 AM on the 23rd day of June, 2020, to testify in a matter wherein PHYLLIS MARIE CROWDER is charged with a violation of the ordinance in the City of OLIVE BRANCH, and PHYLLIS MARIE CROWDER shall in no way omit, under penalties to prescribed by law.

**** FAILURE TO APPEAR ON THIS SUBPOENA COULD RESULT IN A WARRANT BEING ISSUED FOR YOUR ARREST.****

OF THIS WRIT MAKE LEGAL AND DUE RETURN

Given under my hand, this the 10th day of June, 2020.

CARLA JOHNSON, D.C.C.
City Court Clerk



=====

PHYLLIS MARIE CROWDER

=====

MATTHEW OLIVER REARDON
503 CR 371
WATER VALLEY, MS 38965
(662) 892-0132

Mailed 6-10-20

ISSUED: 6/10/2020

CAME TO HAND _____
EXECUTED ON THE DAY WITHIN NAMED PARTY
THIS ____ DAY OF _____, 20____.

Officer

(Signature)

*He's going to bring
all his evidence
by this wk. for the
file.*

Johnson, Carla

From: Johnson, Carla
Sent: Tuesday, May 19, 2020 6:18 PM
To: 'Christi McCoy'
Subject: Phyllis Crowder
Attachments: 20200519183055.pdf

Attached continuance. Continued to 6/23/2020 at 10:00 a.m. via Zoom.

Carla Johnson, Deputy Court Clerk
Olive Branch Municipal Court
6900 Highland St
Olive Branch, MS 38654
662-892-9505 Direct
662-892-9500 Court
662-892-9510 Fax
carla.johnson@obms.us

**ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT**

**CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI**

DOCKET NO: 2000000454

CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)

VS.

PHYLLIS MARIE CROWDER, DEFENDANT

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 19th day of May, 2020, at ~~9:00~~ **10:00** AM, for the purpose of

- 1) ☐ Entry of Plea and Payment of \$ _____
- 2) ☐ Trial
- 3) ☐ Retaining an Attorney
- 4) ☒ Report back.

Ordered and adjudged this the 31st day of March, 2020.

CARLA JOHNSON, D.C.C. 
JUDGE/CLERK

Acknowledged:

Victim: As per request

By _____
CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)

May pay before court _____

DEFENDANT

CHRISTI McCOY (EMAIL)
ATTORNEY FOR DEFENDANT

(Zoom 5/1/20)
(C)

Form 1027(7-76)

CITY OF OLIVE BRANCH
STATE OF MISSISSIPPI
COUNTY OF DESOTO

SUBPOENA

TO ANY LAWFUL OFFICER GREETING:

SUMMON:

DOCKET NO: 2000000454

MATTHEW OLIVER REARDON
7677 ALEXANDER CROSSING DRIVE
OLIVE BRANCH, MS 38654

To appear, VIA ZOOM, before the Judge in the Municipal Court of OLIVE BRANCH, MISSISSIPPI at 10:00 AM on the 19th day of May, 2020, to testify in a matter wherein PHYLLIS MARIE CROWDER is charged with a violation of the ordinance in the City of OLIVE BRANCH, and PHYLLIS MARIE CROWDER shall in no way omit, under penalties to prescribed by law.

**** FAILURE TO APPEAR ON THIS SUBPOENA COULD RESULT IN A WARRANT BEING ISSUED FOR YOUR ARREST. ****

OF THIS WRIT MAKE LEGAL AND DUE RETURN

Given under my hand, this the 1st day of May, 2020.

CARLA JOHNSON, D.C.C.
City Court Clerk



=====

PHYLLIS MARIE CROWDER

=====

MATTHEW OLIVER REARDON
7677 ALEXANDER CROSSING DRIVE
OLIVE BRANCH, MS 38654
(662) 832-5049

ISSUED: 5/01/2020

CAME TO HAND _____
EXECUTED ON THE DAY WITHIN NAMED PARTY
THIS ____ DAY OF _____, 20____.

Officer

Mailed
5-1-20 (9)

Johnson, Carla

From: Skinner, Judy
Sent: Tuesday, March 31, 2020 1:43 PM
To: Johnson, Carla
Subject: Fwd: Phylliss Crowder, 10/19/89

Carla,
Could you please take care of this, don't know if court date has been changed.

Judy Skinner

Begin forwarded message:

From: "Driver, Sherrie" <sdriver@obms.us>
Date: March 31, 2020 at 1:28:16 PM CDT
To: "Riles, Ashley" <ashley.riles@obms.us>
Cc: "Skinner, Judy" <jjeans@obms.us>
Subject: Phylliss Crowder, 10/19/89

Victim is requesting to be subpoenaed for court due to having additional audio evidence for prosecution.

Victim:

Matthew Reardon
2785 Hwy 145
Saltillo, MS 38866

Phone: 662-892-0132

Capt. Sherrie Driver

Olive Branch Police Dept

Supervisor Criminal Investigations Division

10470 Hwy 178, Olive Branch, MS 38654

Office: 662-892-9457

Fax: 662-892-9436

Email: sdriver@obms.us

**ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT**

**CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI**

DOCKET NO: 2000000454

CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)

VS.

PHYLLIS MARIE CROWDER, DEFENDANT

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 7th day of April, 2020, at 9:00 AM, for the purpose of

- 1) ☐ Entry of Plea and Payment of \$ _____
- 2) ☐ Trial
- 3) ☐ Retaining an Attorney
- 4) ☒ Report back.

Ordered and adjudged this the 11th day of March, 2020.



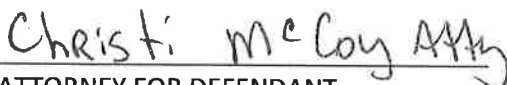
JUDGE/CLERK

Acknowledged:

By _____
CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)

May pay before court _____

DEFENDANT



ATTORNEY FOR DEFENDANT

Form 1027(7-76)

IN THE MUNICIPAL COURT OF OLIVE BRANCH, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

Dkt. No. 2000000454

PHYLLIS CROWDER

MOTION FOR DISCOVERY

COMES NOW, Phyllis Crowder, by and through counsel of record and moves this Honorable Court for a continuance, stating the following, to-wit:

1. This matter is a criminal matter, the conviction of which could result in fines and/or incarceration.
2. Defendant is entitled to a fair trial, and is thus entitled to review any and all information to be used against her in this prosecution.
3. Defendant moves this Honorable Court for an order of discovery, granting her access to any and all information obtained during the investigation of this matter, including exculpatory information.

Respectfully submitted,

Christi R. McCoy
Christi R. McCoy, MSB#9986

Christi R. McCoy, MSB#9986
The Earlene Gardner Victims Assistance Project
5 County Road 1014
Oxford, Mississippi 38655
cmccoy@nmrls.com
662-234-8731, Ext 2101

CERTIFICATE OF SERVICE

I, Christi McCoy, Attorney for Phyllis Crowder, do hereby certify that a true and correct copy of the Motion for Discovery was filed in this cause of action.

This the 11th day of March 2020.

/s/Christi R. McCoy
Christi R. McCoy

IN THE MUNICIPAL COURT OF OLIVE BRANCH, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

Dkt. No. 2000000454

PHYLLIS CROWDER

MOTION TO CONTINUE

COMES NOW, Phyllis Crowder, by and through counsel of record and moves this Honorable Court for a continuance, stating the following, to-wit:

1. This matter was set for March 17, 2020, as a date for Phyllis Crowder to appear with counsel. Counsel undersigned has filed an entry of appearance and now seeks a trial date in this matter.
2. Counsel undersigned has a prior setting on March 17, 2020, and moves this Honorable Court to set this matter for trial on a date certain in the future, and to continue the case from the current setting of March 17, 2020.

Respectfully submitted,

Christi R. McCoy
Christi R. McCoy, MSB#9986

Christi R. McCoy, MSB#9986
The Earlene Gardner Victims Assistance Project
5 County Road 1014
Oxford, Mississippi 38655
cmccoy@nmrls.com
662-234-8731, Ext 2101

CERTIFICATE OF SERVICE

I, Christi McCoy, Attorney for Phyllis Crowder, do hereby certify that a true and correct copy of the Motion to Continue was filed in this cause of action.

This the 11th day of March 2020.

/s/Christi R. McCoy
Christi R. McCoy

ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT

CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI

DOCKET NO. 200000454

CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)

VS.

Phyllis Crowder, DEFENDANT

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 17th day of March, 2020, at 9:00 A.M./P.M., for the purpose of 1) _____ entry of plea & payment of \$ _____, 2) _____ trial 3) X retaining an attorney, 4) _____ report back.

Ordered and adjudged the 11 day of Feb., 2020.

C. Johnson, Jr.
JUDGE/CLERK

Acknowledged:

By _____

CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)

May pay before court _____

Phyllis Crowder
DEFENDANT

SUBPOENA

PHONE # _____

Christy McCoy Atty
ATTORNEY FOR DEFENDANT

a. R. R. 2/13/20
CLERK VERIFIED/DATE

3/17/20

IN THE MUNICIPAL COURT OF OLIVE BRANCH, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

Dkt. No. 2000000454

PHYLLIS CROWDER

MOTION FOR DISCOVERY

COMES NOW, Phyllis Crowder, by and through counsel of record and moves this Honorable Court for a continuance, stating the following, to-wit:

1. This matter is a criminal matter, the conviction of which could result in fines and/or incarceration.
2. Defendant is entitled to a fair trial, and is thus entitled to review any and all information to be used against her in this prosecution.
3. Defendant moves this Honorable Court for an order of discovery, granting her access to any and all information obtained during the investigation of this matter, including exculpatory information.

Respectfully submitted,

Christi R. McCoy
Christi R. McCoy, MSB#9986

Christi R. McCoy, MSB#9986
The Earlene Gardner Victims Assistance Project
5 County Road 1014
Oxford, Mississippi 38655
cmccoy@nmrls.com
662-234-8731, Ext 2101

CERTIFICATE OF SERVICE

I, Christi McCoy, Attorney for Phyllis Crowder, do hereby certify that a true and correct copy of the Motion for Discovery was filed in this cause of action.

This the 11th day of March 2020.

/s/Christi R. McCoy
Christi R. McCoy

IN THE MUNICIPAL COURT OF OLIVE BRANCH, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

Dkt. No. 2000000454

PHYLLIS CROWDER

ENTRY OF APPEARANCE

COMES NOW, Christi R. McCoy, Mississippi Bar Number 9986, and files her Entry of Appearance on behalf of defendant, Phyllis Crowder. All documents, pleadings, etc., should be sent to the following:

Christi R. McCoy, Director
The Earlene Gardner Victims Assistance Project
Post Office Box 928
5 County Road 1014
Oxford, Mississippi 38655
cmccoy@nmrls.com

Respectfully submitted,

Christi R. McCoy
Christi R. McCoy, MSB#9986

Christi R. McCoy, MSB#9986
The Earlene Gardner Victims Assistance Project
5 County Road 1014
Oxford, Mississippi 38655
cmccoy@nmrls.com
662-234-8731, Ext 2101

CERTIFICATE OF SERVICE

I, Christi McCoy, Attorney for Phyllis Crowder, do hereby certify that a true and correct copy of the *Entry of Appearance*, was filed in this cause of action.

This the 11th day of March 2020.

/s/Christi R. McCoy
Christi R. McCoy

**ORDER OF CONTINUANCE
IN THE MUNICIPAL COURT**

CITY OF OLIVE BRANCH
COUNTY OF DESOTO
STATE OF MISSISSIPPI

DOCKET NO: 2000000454

CITY OF OLIVE BRANCH (OR STATE OF MISSISSIPPI)

VS.

PHYLLIS MARIE CROWDER, DEFENDANT

By agreement between (Counsel for) the City of Olive Branch and (Counsel for) the Defendant, or by the Court on its own motion, said cause is hereby continued until the 8th day of December, 2020, at 1:59 PM, for the purpose of

- 1) ☐ Entry of Plea and Payment of \$ _____
- 2) ☐ Trial
- 3) ☐ Retaining an Attorney
- 4) ☒ Report back.

Ordered and adjudged this the 30th day of November, 2020.



JUDGE/CLERK

Acknowledged:

By _____
CITY OF OLIVE BRANCH
(STATE OF MISSISSIPPI)

May pay before court _____

DEFENDANT



ATTORNEY FOR DEFENDANT

Form 1027(7-76)

Johnson, Carla

From: Johnson, Carla
Sent: Tuesday, March 31, 2020 4:38 PM
To: 'Christi McCoy'
Subject: RE: Phyllis Marie Crowder
Attachments: 20200331172751.pdf

Ms. McCoy,

I'm attaching a copy of the continuance for 5/19/2020 at 9:00 a.m. We are continuing cases into May and that's the last Tuesday court date we have in May. I've also attached a copy of the file. I apologize if you did not receive the discovery. Our court clerk, Judy Skinner, usually handles this but she has been out sick.

Thank you and y'all stay safe as well!

Carla Johnson, Deputy Court Clerk
Olive Branch Municipal Court
6900 Highland St
Olive Branch, MS 38654
662-892-9505 Direct
662-892-9500 Court
662-892-9510 Fax
carla.johnson@obms.us

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Tuesday, March 31, 2020 4:21 PM
To: Johnson, Carla
Subject: RE: Phyllis Marie Crowder

Hi Carla. Thank you for reaching out. I would love to continue the case. I am trying to limit my court cases as much as possible at this time so feel free to continue it for as far ahead as you would like. ☺

Thank you and please stay safe!

Christi

Also – when and how do I receive discovery?

From: Johnson, Carla <carla.johnson@obms.us>
Sent: Tuesday, March 31, 2020 4:14 PM
To: Christi McCoy <cmccoy@nmrls.com>
Subject: Phyllis Marie Crowder

Ref: Docket #2000000454

Ms. McCoy,

Good afternoon. I wanted to touch base with you to see if you still wanted to appear in court on Tuesday, April 7, 2020 at 9:00 a.m. on the above referenced case. Due to COVID-19, we are only having a limited amount of people in the courtroom on this date. Judge Shumake is allowing attorneys to continue their cases. I also left you a voicemail about this on your office number as well.

Please let me know as soon as possible if you want to continue this case or if you will be here. The victim is requesting a subpoena and we will need time to issued and mail.

Thank you,

Carla Johnson, Deputy Court Clerk
Olive Branch Municipal Court
6900 Highland St
Olive Branch, MS 38654
662-892-9505 Direct
662-892-9500 Court
662-892-9510 Fax
carla.johnson@obms.us

Johnson, Carla

From: Johnson, Carla
Sent: Friday, May 01, 2020 12:33 PM
To: 'Christi McCoy'
Subject: Phyllis Marie Crowder
Attachments: ZOOM INFO.pdf

Ms. McCoy,

This case was continued to May 19th at 9:00 a.m. Judge Shumake wants to handle this case via Zoom Video. We are resetting the time to 10:00 a.m. I have attached information about Zoom if you are not familiar with it.

Thank you,

Carla Johnson, Deputy Court Clerk
Olive Branch Municipal Court
6900 Highland St
Olive Branch, MS 38654
662-892-9505 Direct
662-892-9500 Court
662-892-9510 Fax
carla.johnson@obms.us

James, Heather

From: James, Heather
Sent: Tuesday, June 23, 2020 4:27 PM
To: 'cmccoy@nmrls.com'
Subject: PHYLLIS CROWDER
Attachments: 20190717-095122_101_(662)893-5208_Outgoing_Auto_1087934178036.mp3;
20200122-135956_101_+16628327841_Outgoing_Auto_1188714075036.mp3;
20200123-144130_101_+16628327841_Incoming_Auto_1189461010036.mp3;
20200123-165801_101_+16628327841_Incoming_Auto_1189594749036.mp3

Ms McCoy,

As advised, I've attached the remaining audio files for you.

Have a great day!

*Heather James
Deputy Court Clerk
Olive Branch Municipal Court
(662) 892-9500
Heather.James@obms.us*

James, Heather

From: James, Heather
Sent: Tuesday, June 23, 2020 4:27 PM
To: 'cmccoy@nmrls.com'
Subject: PHYLLIS CROWDER
Attachments: PHYLLIS CROWDER EVIDENCE.pdf; Liz Crowder confession-20190720-032511
_(662)832-7841_Incoming_Auto_1089670575036.mp3; LC 4th 20190713-182049_101
_(662)832-7841_Outgoing_Auto_1086323428036.mp3; LC 3rd 20190713-181631_101
_(662)832-7841_Outgoing_Auto_1086322598036.mp3; LC 2nd 20190713-164133_101
_(662)832-7841_Outgoing_Auto_1086308285036.mp3; LC 1st 20190713-163055
_(662)832-7841_Incoming_Auto_1086306544036.mp3

Ms McCoy,

I have attached the additional discovery you requested. This includes both the audio files from Mr. Reardon and the documents from the detective. They are being sent in separate emails as the files together were too large for one email.

Additionally, this has been set for an In Person appearance on July 21st @ 9am. Please let us know as soon as possible if this day will work for you.

Have a great day!

*Heather James
Deputy Court Clerk
Olive Branch Municipal Court
(662) 892-9500
Heather.James@obms.us*

James, Heather

From: James, Heather
Sent: Friday, June 26, 2020 8:19 AM
To: 'cmccoy@nmrls.com'
Subject: FW: PHYLLIS CROWDER

Ms McCoy,

Just checking in to see if you were able to confirm this date or not. We need to issue subpoenas and didn't want to issue this one if it wasn't a good date for you.

Please let us know as soon as possible.

Thanks!

Heather James
Deputy Court Clerk
Olive Branch Municipal Court
(662) 892-9500
Heather.James@obms.us

From: James, Heather
Sent: Tuesday, June 23, 2020 4:27 PM
To: 'cmccoy@nmrls.com'
Subject: PHYLLIS CROWDER

Ms McCoy,

I have attached the additional discovery you requested. This includes both the audio files from Mr. Reardon and the documents from the detective. They are being sent in separate emails as the files together were too large for one email.

Additionally, this has been set for an In Person appearance on July 21st @ 9am. Please let us know as soon as possible if this day will work for you.

Have a great day!

Heather James
Deputy Court Clerk
Olive Branch Municipal Court
(662) 892-9500
Heather.James@obms.us

Johnson, Carla

From: Christi McCoy <cmccoy@nmrls.com>
Sent: Friday, July 31, 2020 10:21 AM
To: Johnson, Carla
Cc: James, Heather; Ryan Evans; Brock, Samantha
Subject: Re: Crowder

The 22nd is the best day for us.

I will get a motion ASAP.

Can I email it to you?

Thank you!

Sent from my iPhone

On Jul 31, 2020, at 10:07 AM, Johnson, Carla <carla.johnson@obms.us> wrote:

Judge Shumake has reviewed this case. He is asking for a Motion to Continue with the reason stated on the Motion. He also wants to set this for a trial. However, we will not have court on September 8th (or 15th). Would September 1st or 22nd, at 9:00 a.m. or 2:00 p.m. work for you? Please send us the motion and time preference.

Thank you,

Carla Johnson, Deputy Court Clerk
Olive Branch Municipal Court
6900 Highland St
Olive Branch, MS 38654
662-892-9505 Direct
662-892-9500 Court
662-892-9510 Fax
carla.johnson@obms.us

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Thursday, July 30, 2020 7:32 PM
To: James, Heather; Johnson, Carla
Cc: 'Ryan Evans'
Subject: Crowder

Hello – As you may recall, I represent Phyllis Crowder. She has always hired another attorney – Mona Pittman – to assist in this as well as some other matters.

Mona cannot be present Tuesday the 4th as she will be quarantined in NYC until close to the end of the month.

We would like to move this until September 8th - that is the first Tuesday both Mona and I are free.

I am copying Mr. Evans as he said he did not have an objection.

I have wanted to call all week and have been in trial. I kept thinking we would finish before close of business but it has been late every day so I decided I better email!

Please advise!

Thank you!

Christi McCoy

Johnson, Carla

From: Johnson, Carla
Sent: Tuesday, October 06, 2020 8:27 AM
To: 'Christi McCoy'
Subject: RE: Crowder, Phyllis
Attachments: 20201006092630.pdf

Attached court order. I apologize for the delay.

Carla

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Monday, October 05, 2020 2:10 PM
To: Johnson, Carla
Subject: RE: Crowder, Phyllis

Thank you! I just want to make sure I don't miss any appeal dates.

From: Johnson, Carla <carla.johnson@obms.us>
Sent: Monday, October 5, 2020 2:06 PM
To: Christi McCoy <cmccoy@nmrls.com>
Subject: RE: Crowder, Phyllis

I just reminded Judge Shumake. He said he will get it to me this afternoon. I'll forward it to you as soon as he gives it to me. (I put a reminder on the folder for him 😊)

Carla

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Monday, October 05, 2020 1:53 PM
To: Johnson, Carla
Subject: Crowder, Phyllis

Hi Carla. Just checking back about getting a copy of Judge Shumake's order in this case.

Hope you are off to a great week!

Christi

Christi McCoy

From: Johnson, Carla <carla.johnson@obms.us>
Sent: Tuesday, October 6, 2020 8:27 AM
To: Christi McCoy
Subject: RE: Crowder, Phyllis
Attachments: 20201006092630.pdf

Attached court order. I apologize for the delay.

Carla

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Monday, October 05, 2020 2:10 PM
To: Johnson, Carla
Subject: RE: Crowder, Phyllis

Thank you! I just want to make sure I don't miss any appeal dates.

From: Johnson, Carla <carla.johnson@obms.us>
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To: Christi McCoy <cmccoy@nmrls.com>
Subject: RE: Crowder, Phyllis

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Carla

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Monday, October 05, 2020 1:53 PM
To: Johnson, Carla
Subject: Crowder, Phyllis

Hi Carla. Just checking back about getting a copy of Judge Shumake's order in this case.

Hope you are off to a great week!

Christi

Brock, Samantha

From: Christi McCoy <cmccoy@nmrls.com>
Sent: Monday, October 26, 2020 5:00 PM
To: Brock, Samantha
Subject: Re: Phyllis Crowder

Yes. We were waiting for that. We will have that \$ submitted this week.

Sent from my iPhone

On Oct 26, 2020, at 4:57 PM, Brock, Samantha <sbrock@obms.us> wrote:

You've already filed this in county court? I wasn't aware that it could be done without a cost bill. Judge Shumake just signed one today after receiving the notice of appeal. I've attached a copy for your records.

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Monday, October 26, 2020 4:35 PM
To: Brock, Samantha
Subject: Re: Phyllis Crowder

Hello. Yes. We appealed the decision. Judge Shumake gave us 30 days to do so. If we chose not to appeal we had come to court tomorrow.

Sent from my iPhone

On Oct 26, 2020, at 4:06 PM, Brock, Samantha <sbrock@obms.us> wrote:

Ms. McCoy,

We received a notice of appeal on Phyllis Crowder in the mail from you today. Please contact me regarding this as she's on our docket for tomorrow at 9:00am.

Best regards,

Samantha Brock
Court Clerk
Olive Branch Municipal Court
6900 Highland Street
Olive Branch, MS 38654
(662) 892-9501 Phone
(662) 892-9511 Fax

Brock, Samantha

From: Allison Pannell <apannell@desotocountyms.gov>
Sent: Monday, November 23, 2020 8:47 AM
To: Brock, Samantha
Subject: Phyllis Crowder S2020-0024CD

A Notice of Appeal was filed November 19th
I will forward a copy to you after I have processed this appeal.

The Attorney contacted me and said that the other Party involved in this case records your conversations and puts them on Social Media!??
Wow

Have a Great Week and Happy Thanksgiving.

Allison

Brock, Samantha

From: Allison Pannell <apannell@desotocountymtms.gov>
Sent: Monday, November 23, 2020 9:22 AM
To: Brock, Samantha
Subject: Notice of appeal filed on Phyllis Crowder S2020-0024CD
Attachments: PHYLLIS CROWDER NOA.pdf; Allison Harris.vcf

Importance: High

Samantha,

This appeal is out of time, I will keep you advised if we need the court records and how our Judge moves forward.

Thanks Allison

Allison Harris

DeSoto County Court

662-469-8346 Work

2535 Hwy 51 S Suite 200
Hernando MS 38632

Brock, Samantha

From: Christi McCoy <cmccoy@nmrls.com>
Sent: Monday, November 30, 2020 10:06 AM
To: Brock, Samantha
Subject: Re: Phyllis Crowder

Perfect. Thank you!

Sent from my iPhone

On Nov 30, 2020, at 10:04 AM, Brock, Samantha <sbrock@obms.us> wrote:

I'll set this for 12/08/2020 @ 2:00pm.

From: Christi McCoy [mailto:cmccoy@nmrls.com]
Sent: Monday, November 30, 2020 9:56 AM
To: Brock, Samantha
Subject: Re: Phyllis Crowder

Hey Samantha. Let's set this for the 8th in the afternoon and get this done as quickly as possible.

Will that be at 1?

Sent from my iPhone

On Nov 23, 2020, at 2:02 PM, Brock, Samantha <sbrock@obms.us> wrote:

Ms. McCoy,

We just received the order of dismissal from Desoto County Court on Phyllis Crowder. We need to set this case back on the docket. We have 12/01/20, 12/08/20 or 12/15/20 available. I can set this for morning or afternoon. Please let me know as soon as possible.

Best regards,

Samantha Brock
Court Clerk
Olive Branch Municipal Court
6900 Highland Street
Olive Branch, MS 38654
(662) 892-9501 Phone
(662) 892-9511 Fax

Brock, Samantha

From: Allison Pannell <apannell@desotocountyms.gov>
Sent: Wednesday, November 25, 2020 12:57 PM
To: Brock, Samantha
Subject: PHYLLIS CROWDER

Sending you a check and a copy of the Original Order to your attention
It's on the way
Have a Great Holiday!

NO LIMIT BAIL BONDS, LLC

APPEARANCE BOND

THE STATE OF MISSISSIPPI

LICENSE NO. 311492

Desoto County

Bond No. 607

We, Phyllis Crowder, principal and Kelvin Hall d/b/a

No Limit Bail Bonds, LLC, agree to pay the State of Mississippi

2500 twenty five hundred Dollars, unless the said

Phyllis Crowder shall appear at the

OB City Court 11 day of Feb, 2020.

at 9 o'clock a.m, and from day to day and term until discharged by law to

answer a charge of False Reporting of crime

Kelvin Hall
Dba NO LIMIT BAIL BONDS, LLC
P.O. BOX 1256
Byhalia, MS 38611
662-895-0234

(Signed)
[Signature] Principal
By: [Signature]

Date: Jan 25, 2020

Approved: _____